

# Factual Causation (2)



# Recap

# Overview

- ❑ Standard but-for causation: D liable
- ❑ Material contribution to divisible injury: D liable for the part of the injury they caused
- ❑ Material contribution to indivisible injury: D liable in full
- ❑ Material contribution to the risk of injury: D liable in proportion to their contribution to the risk

# Tea scenario #1 (material contribution to divisible injury)



- D1, D2, and D3 each add a drop of salmonella to C's tea
- Suppose that for each drop of salmonella, C will have another week of food poisoning
- C drinks the tea and get food poisoning for 3 weeks

Result: each D is liable only for one week of food poisoning, as that is what they each caused (standard 'but-for')

## Tea scenario #2 (material contribution to indivisible injury)



- ❑ D1, D2, and D3 each add a drop of deadly poison to C's tea
- ❑ Suppose that each drop of poison would, alone, kill C
- ❑ C drinks the tea and dies

Result: each D is liable entirely for C's death (departure from 'but-for')

# Tea scenario #3 (material contribution to risk of injury)



- ❑ D1, D2, and D3 each add a drop of kryptonite to C's tea
- ❑ Suppose that each time you drink a drop of kryptonite you have a 10% chance of being poisoned. Sometimes you are fine, but 10% of the time you die.
- ❑ C drinks the tea, and dies

Result: D1, D2, and D3 each liable for 1/3 of damages



## 2. Material contribution to risk of injury (continued)



# The limits of *Fairchild*

# *Wilsher v Essex Area Health Authority* [1988] 1 AC 1074



- ❑ D negligently gave C too much oxygen, which increased risk of RLF
- ❑ C developed RLF
- ❑ There were five different and equally likely possible causes of the RLF

Held:

- ❑ D not liable because no causation



# *Wilsher* distinguished

- ❑ “It is one thing to treat an increase of risk as equivalent to the making of a material contribution where a single noxious agent is involved, but quite another where any one of a number of noxious agents may equally probably have caused the damage.” (Lord Bingham in *Fairchild*, [22])
- ❑ “In my opinion it is an essential condition for the operation of the exception that the impossibility of proving that the defendant caused the damage arises out of the existence of another potential causative agent which operated in the same way.” (Lord Hoffmann in *Barker*, [24])



# Tea scenario #5

- ❑ D puts a drop of 'serum X' in C's tea which increases C's chance of food poisoning by 10%
- ❑ C used some old water in his tea which had 'serum Y' in it increasing his chance of food poisoning by 10%
- ❑ C drinks the tea and gets food poisoning

Result: D only liable if serum X and Y cause food poisoning in the same way, otherwise not liable

# Criticism of MCRI

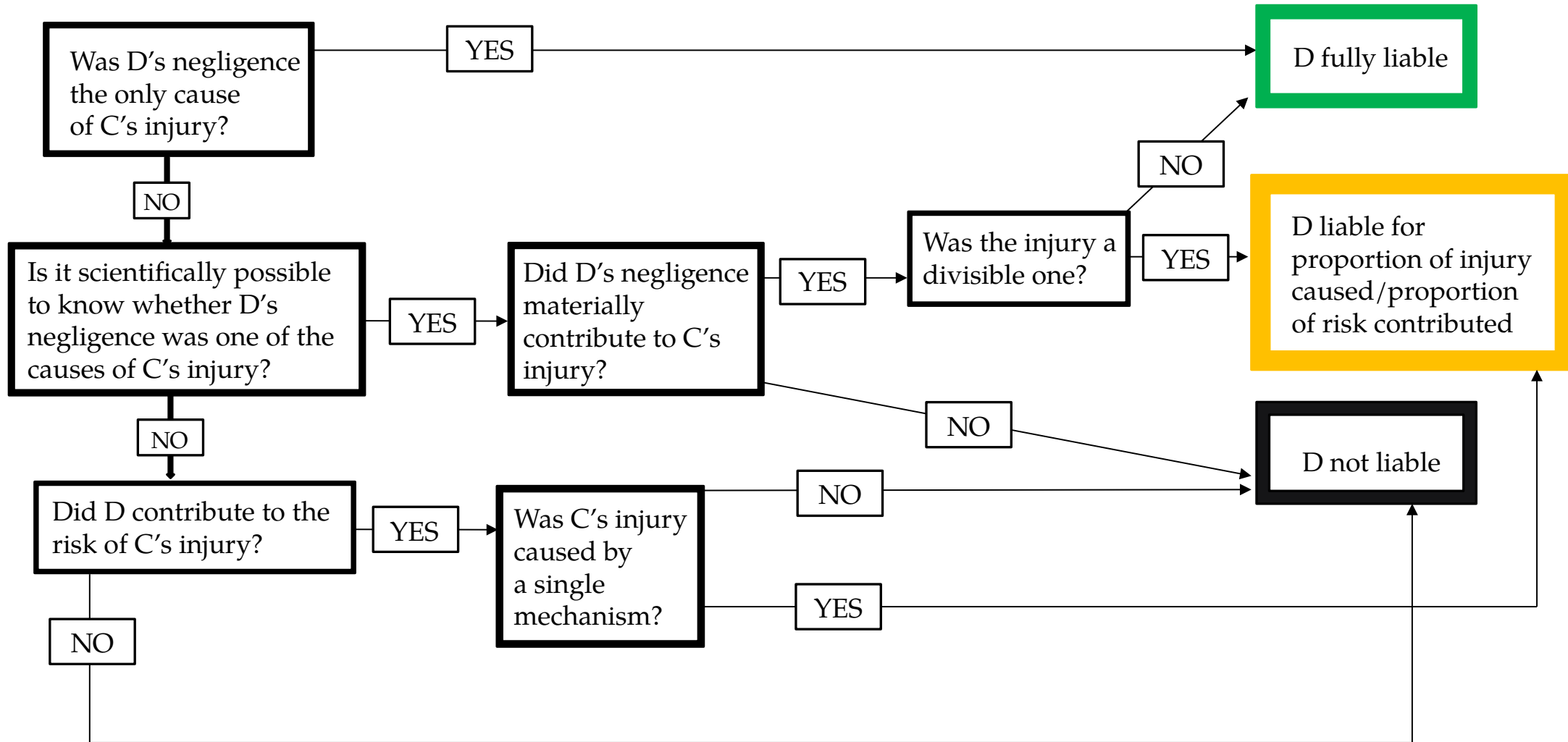
- ❑ “In the case of mesothelioma claims, there can be no real doubt but if *Fairchild* had been decided the other way, in accordance with normal common law principles, Parliament would have intervened very promptly. That may very well have been a better solution, but it can fairly be said that that observation is made with the wisdom of hindsight.” (Lords Neuberger & Reed, *Zurich Insurance* [2015] UKSC 33, [211])
- ❑ “[T]his line of authority is very much an exception to the normal rule, and ... further judicial experimentation in this area is not to be encouraged.” (W&J, p.176)

# The future



- ❑ MCRI turns on the scientific impossibility of knowing whether D's negligence caused C's injury
- ❑ If science develops to the point where such knowledge is attainable, then MCRI will disappear
- ❑ E.g. if we can identify exactly which strand of asbestos caused mesothelioma and we can date it precisely, then we will know which D caused it – so, no need for MCRI approach

## Factual Causation—Flowchart



# Problem cases

1. Material contribution to injury
2. Material contribution to the risk of injury
3. Loss of a chance



### 3. Loss of a chance

# The setup: loss of a chance

- ❑ C cannot show on the balance of probabilities that D caused C harm, but C can show that D caused C to lose a chance of avoiding that harm
- ❑ Really a question about whether losing a chance counts as 'damage' rather than whether D has 'caused' damage
- ❑ Problem arises because of 'causal uncertainty' — because we cannot know for sure what would have happened if D had not been negligent

# *Hotson v East Berkshire* HA [1987] AC 750



Facts:

- ❑ C fell from a tree and hurt his hip – D negligently misdiagnosed C
- ❑ If correctly diagnosed there would have been 25% chance that C's hip would have recovered
- ❑ Negligent diagnosis meant 0% chance of C recovering

# *Hotson v East Berkshire* HA [1987] AC 750



Held:

- ❑ Because C's hip only had a 25% chance of recovering, on the balance of probabilities he would have lost the hip
- ❑ So, it did not matter that D's negligence had reduced that chance to 0%
- ❑ No scope for giving 25% damages to C (as HC and COA had held below)

# *Gregg v Scott* [2005] 2 AC 176

Facts:

- ❑ D's negligence delayed C receiving medical treatment for cancer
- ❑ C initially had a 42% chance of recovery
- ❑ D's negligence had reduced that to a 25% chance

Held:

- ❑ D not liable because C had a less than 50% chance of recovery in the first place

# *Gregg v Scott* [2005] 2 AC 176

## **Lady Hale's points**

1. Allowing damages for lost chances would render 'but-for' causation redundant, because in almost every case where there is a breach of duty this will cause a loss of a chance for C to some degree. [215]
2. The gist of negligence is damage, and if we allow recovery for lost chances it would do away with the need to show damage. [217]

# *Gregg v Scott* [2005] 2 AC 176

## Lady Hale's points

3. If C were compensated for his lost chance, then it would make no sense to retain the rule that Cs in tort cases are compensated 100% in normal circumstances. Otherwise, we would have a mixed approach where:
  - a. Cs who can show their injury was >50% likely to have been caused by D get 100% damages, but;
  - b. Cs who can show their injury was <50% likely to have been caused by D get damages in proportion to their lost chance.

This would make no sense – it would be a “heads you lose everything, tails I win something” situation.

Alternative would be to adopt approach (b) for all cases – but this would add a lot of complexity and cost to cases.

# *Gregg v Scott* [2005] 2 AC 176

## The dissents

- Lord Nicholls: The point of a medical duty is to promote the patient's recovery, it would be irrational to empty this duty of content. A 45% chance of recovery is 'real'!
- Lord Hope: The delay allowed the cancer to grow, this was a physical injury and 'chance' could be assessed, as usual, through damages.

# The exception: loss of a chance of money

“There is not much difference between the money one expected to have and the money one expected to have a chance of having: it is all money. There is a difference between the leg one ought to have and the chance of keeping a leg which one ought to have.”

(Lady Hale in *Gregg*, [220])

- A chance of money can be valued easily – e.g. you can sell a bet

# The exception: loss of a chance of money

The rule in *Allied Maples Group Ltd v Simmons & Simmons* [1995] 1 WLR 1602

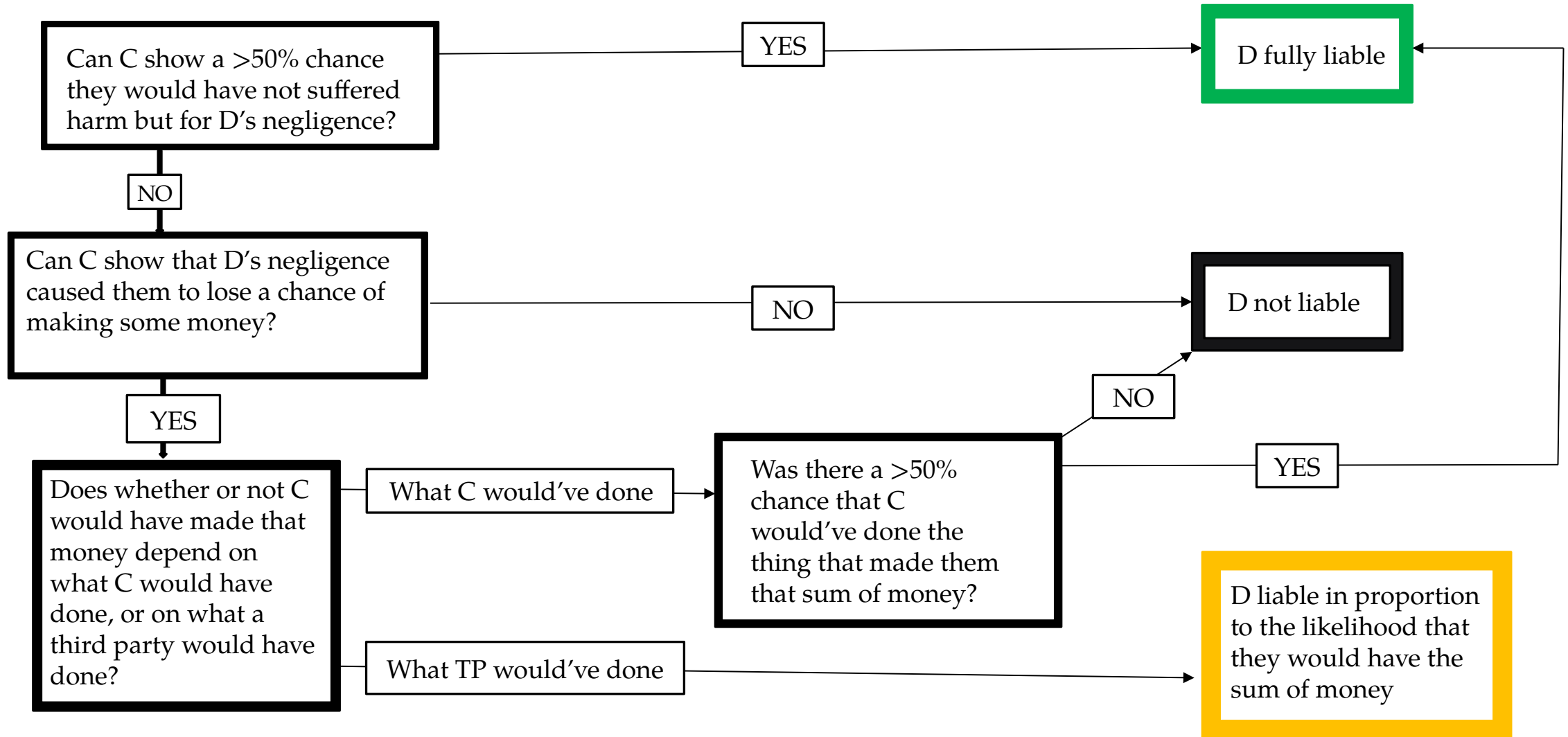
- “To the extent (if at all) that the question whether [C] would have been better off depends upon what [C] would have done [had D not been negligent], this must be proved by the claimant upon the balance of probabilities. To the extent that the supposed beneficial outcome depends upon what others would have done [had D not been negligent], this depends upon a loss of chance evaluation.” (*Perry v Raleys Solicitors* [2019] UKSC 5, [20])

# The exception: loss of a chance of money

The rule in *Allied Maples Group Ltd v Simmons & Simmons* [1995] 1 WLR 1602

- If C can show it is >50% likely they would have done something which would get them X amount had D not been negligent, then C gets X amount; but if C can only show it is <50% likely they would have done that thing, then they get 0
- Whereas, if C can show it is N% likely that TP would have done something which would get C that X amount had D not been negligent, then C gets N% of X amount

## Loss of a chance — Flowchart



# Summary

- ❑ Standard but-for causation: D liable
- ❑ Material contribution to divisible injury: D liable for the part of the injury they caused
- ❑ Material contribution to indivisible injury: D liable in full
- ❑ Material contribution to the risk of injury: D liable in proportion to their contribution to the risk
- ❑ Loss of a chance: D not liable unless loss of a chance of money